

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #13	CCRB Case #: 202307821	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/17/2023 7:38 PM	Location of Incident: West 4 Street/Washington Square subway station (A, B, C, D, E, F, and M lines)	18 Mo. SOL 2/17/2025	Precinct: 06
Date/Time CV Reported Sun, 08/20/2023 5:28 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 08/20/2023 5:28 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Kamil Choinski	03096	948471	TD 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alyssa Young	23476	962572	TD 2
2. PO Ranfier Villar	07502	964826	TD 2

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Kamil Choinski	Abuse: Sergeant Kamil Choinski took photographs of § 87(2)(b)	A . Substantiated

Case Summary

On August 20, 2023, § 87(2)(b) filed this complaint through the CCRB's website (BR 01).

On August 17, 2023, at approximately 7:38 p.m., while riding on a Middle Village-bound M train in midtown Manhattan, § 87(2)(b) encountered Sergeant Kamil Choinski of Transit District 2 riding the same train. As the train arrived at the West 4th Street/Washington Square subway station, Sgt. Choinski took two photographs of § 87(2)(b) on his personal phone (**Allegation A, Abuse of Authority: Photography/Videography, Substantiated**).

No arrests or summonses resulted from this incident.

The investigation received body-worn camera (BWC) footage from Sgt. Choinski as well as Police Officers Ranfier Villar and Alyssa Young of Transit District 2 (BR 02). The relevant aspects of this footage shall be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Kamil Choinski took photographs of § 87(2)(b)

It is undisputed that Sgt. Choinski took two photographs of § 87(2)(b) while riding on a Middle Village-bound M train.

In their CCRB interview (BR 03), § 87(2)(b) said that they were seated next to the train doors and saw Sgt. Choinski using his phone while riding the train. § 87(2)(b) told the officers that they were not supposed to be on their phones while at work. Sgt. Choinski responded, "This is my work device," angered by § 87(2)(b) comment. The officers turned on their BWCs. § 87(2)(b) started recording the officers on their phone. Sgt. Choinski positioned himself behind § 87(2)(b) in front of the subway door, to prevent § 87(2)(b) from filming him. § 87(2)(b) then turned their camera to selfie mode and took a photograph of Sgt. Choinski at 7:38 p.m. (per their phone's timestamp), showing the latter looking down at the former's phone and seeing what they were doing. Sgt. Choinski asked § 87(2)(b) if they felt cool and said that he would not respond to any of their questions. Sgt. Choinski continued to stand next to § 87(2)(b) until West 4th Street – Washington Square, at which point, both the officers and § 87(2)(b) got off the train. As Sgt. Choinski got off the train, he turned around, lifted his phone upright to face § 87(2)(b) (who was getting up to deboard the train), and took a photograph of § 87(2)(b) face. § 87(2)(b) said, "You're not supposed to take a picture of my face with your personal phone." Sgt. Choinski responded, "You don't know if this is my personal phone."

PO Villar's BWC activation shows Sgt. Choinski taking photographs of § 87(2)(b) at runtimes 01:25 and 05:15 (BR 04).

In his CCRB interview (BR 05), Sgt. Choinski confirmed that he took two photos of § 87(2)(b) on his personal phone. Sgt. Choinski gave the following rationale for taking the photos: "Well, I felt that this would lead to where we are today – a CCRB complaint that she was not satisfied with me being on my phone – so I did it for my own protection. Because I felt like I would end up here." This was his sole reason for taking the photographs. § 87(2)(b) had not committed any crime or violation. Sgt. Choinski affirmed that officers are not allowed to take photos of members of the public using their personal phones while on duty.

Per Patrol Guide Procedure 200-02 (BR 06), the values of the NYPD include the pledge to “maintain a higher standard of integrity than is generally expected of others” and to “respect the dignity of each individual and render [their] services with courtesy and civility.”

Administrative Guide Procedure 304-06 (BR 07) prohibits officers from “engaging in conduct prejudicial order, efficiency, or discipline of the Department.”

Patrol Guide Procedure 219-32 (BR 11) prohibits officers from using a personal electronic device while performing duties during their tour and provides the following directive on personal cell phone use: “A personal cellular phone is authorized to be used by on duty members of the service on assigned meal, in the event of an emergency. A personal cellular phone shall not be used to conduct official Department business. The personal cellular phone must be carried in a concealed manner that does not interfere with authorized equipment.”

Sgt. Choinski took multiple photographs of § 87(2)(b) on his personal cell phone while on patrol.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be substantiated.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Sgt. Choinski has been a member of service for 13 years and has been a subject in five CCRB complaints and nine allegations, one of which was substantiated.
 - 201507693 involved a substantiated allegation of discourtesy – action. The Board recommended formalized training and the NYPD imposed instructions.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 25, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 09).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	Ethan C. Waterman	SI Ethan Waterman	10/25/2023
	Signature	Print Title & Name	Date

Squad Leader:	JP Lozada	IM Jean-Paul Lozada	11/17/2023
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date